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Overview

Purpose	This document defines regulatory requirements for reporting of product complaints.
Scope	This document applies to functions that perform activities related to reportable complaints and regulatory requests for additional information, including medical devices, combination devices and human tissues/biologics and drug products.
Roles	Formally Designated Complaint Handling Unit - Operating Unit (OU) Complaint Unit - Region Complaint Unit

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Terms and Definitions

Term	Definition	Source
Aware Date	The date that a Medtronic Employee/Contractor (as defined within roles of 027-P428, <i>Submitting Potential Complaints</i>) acquires information that reasonably suggests that a reportable event has occurred.	Medtronic

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Term	Definition	Source
	Aware Date may or may not be the same date as Notify Date (see definition of Notify Date below). NOTES: – See <i>Appendix A</i> for additional detail and examples of Aware Date vs. Notify Date. – Aware Date may be defined differently per local Country/Region requirements. Please reference the applicable local regulatory definitions for countries/regions per applicable work instructions in Section 1.1.	
Distributor	Any person, other than the manufacturer or importer, who furthers the marketing of a device from the original place of manufacture to the person who makes final delivery or sale to the ultimate user.	Medtronic
Final Report	A written statement of the outcome of the investigation and of any action taken regarding the reportable event. The report is made to the competent authority(ies) to whom the initial report was sent.	Medtronic
Follow-Up/ Supplemental Report	A report provided to the competent authority(ies) to whom an initial report was sent. This type of report is used in cases where the timeline for investigation outlined in the initial report has been reached and investigation is not complete.	Medtronic
Foreign Experience Report (FER)	Report that may be required when the complaint event did not occur in a specific country, but because the product in question is registered there, that country's Regulatory Body may require a report notifying them of the complaint.	Medtronic
Formally Designated Complaint Handling Unit	An individual or group that is responsible for establishing, executing, and maintaining processes for receiving, reviewing, and/or evaluating complaints. Comprised of both the OU Complaint Unit and the Region Complaint Unit.	Medtronic
Initial Report	The first report sent to notify the competent authority(ies) of a reportable incident.	Medtronic
Medtronic Agent	An individual or entity that works on behalf of Medtronic pursuant to a contract, including distributors,	Medtronic

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Term	Definition	Source
	independent sales or field agents, resellers, or any other forms of third-party sales or distribution representatives in both developed and emerging markets.	
Notify Date	The date when a Medtronic Employee/Agent was initially informed of a potential complaint. Notify Date may or may not be the same as Aware Date (see Aware Date definition above). NOTE: See <i>Appendix A</i> for additional detail and examples of Aware Date vs. Notify Date.	Medtronic
Operating Unit Complaint Unit	A unit that executes and maintains processes for receiving, reviewing, and/or evaluating complaints. Note: This complaint unit may be comprised of one or more of the following functional groups: ▪ Customer Quality Experience Management (CQXM) ▪ Functions/individuals that contribute to complaint analysis/investigation	Medtronic
Region	Geographic region, (e.g., Greater China), or Country within a region, (e.g., China). US complaints are handled directly by the OU and are not included under the region or country scope.	Medtronic
Regional Complaint Unit	A complaint-handling unit that resides within the Region that executes certain process steps.	Medtronic
Regulatory Inquiry (RI) or Request For Additional Information (RFAI)	A request for information from regulatory authorities and/or notified bodies. Possible subjects of regulatory inquiries include, but are not limited to, complaints, regulatory reports, professional publications, and presentations, user reported events, regulatory report trending information. Excludes requests for information related to regulatory submissions, audit activities, and general compliance requests.	Medtronic

Process Overview

Each complaint must be evaluated to determine reportability to regulatory authorities and notified bodies as part of the complaint handling process. Activities related to reportability include evaluation and reporting (shown below). The overall complaint handling process is addressed in 027-P043, *Product Complaint Handling* and associated Work Instructions and includes regulatory reporting. This document is specific to reportability. Requirements identified in this document are the responsibility of the Formally Designated Complaint Handling Unit Personnel including contractor and/or consultants working for the Complaint Unit.



Process Detail

1. Make Reportability Decision (RD)

Step	Role	Action
1.	Formally Designated Complaint Handling Unit	Review and evaluate each complaint record to determine Region(s) and/or countries where reportability decisions (RDs) are required, including FER decisions per applicable work instructions: 054-WI198, <i>Medical Device Reporting Decision and Regulatory Reporting - United States</i> - D00788854, <i>Combination Products/Drug Product and Tissue-based Product Complaint Process</i> 054-WI200, <i>Reporting Decisions and Regulatory Reporting - Canada</i> 054-WI201, <i>Medical Device Reporting Decision and Regulatory Reporting - European Economic Area (EEA, TR, CH, and UK)</i> - D00780672, <i>Reporting Decision and Regulatory Reporting - Russia, Saudi Arabia, South Africa, Kazakhstan, Serbia, and Egypt</i> - D00780675, <i>Medical Device Reporting Decision and Regulatory Reporting - Israel</i> 054-WI204, <i>Medical Device Reporting Decision and Regulatory Reporting - Mainland China</i>

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Step	Role	Action
		▪ D00780698, <i>Medical Device Reporting Decision and Regulatory Reporting - Japan</i> ▪ D00780692, <i>Medical Device Reporting Decision and Regulatory Reporting - Southeast Asia</i> ▪ D00780695, <i>Medical Device Reporting Decision and Regulatory Reporting - New Zealand</i> ▪ D01337242, <i>Medical Device Reporting Decision and Regulatory Reporting – Australia</i> ▪ D00780699, <i>Medical Device Reporting Decision and Regulatory Reporting - South Korea</i> ▪ D00780691, <i>Medical Device Reporting Decision and Regulatory Reporting - Taiwan</i> ▪ D00780694, <i>Medical Device Reporting Decision and Regulatory Reporting - Hong Kong</i> ▪ D00780688, <i>Medical Device Reporting Decision and Regulatory Reporting - India</i> ▪ D00780667, <i>Medical Device Reporting Decision and Regulatory Reporting - Costa Rica, El Salvador and Mexico</i> ▪ D00780668, <i>Medical Device Reporting Decision and Regulatory Reporting - Brazil</i> ▪ D00780666, <i>Medical Device Reporting Decision and Regulatory Reporting - Colombia and Ecuador</i> ▪ D00780664, <i>Medical Device Reporting Decision and Regulatory Reporting - Argentina, Peru & Uruguay</i>
2.		Request additional information per 027-WI188, <i>Customer Communication</i> as necessary.
3.		Within each complaint, document determination of reportability for each required region or country per applicable work instruction(s) listed above. Ensure the complaint record clearly identifies any complaint that represents an event that requires notification/reporting to regulatory agencies, whether it be a Medtronic-generated report or a report from a third party (e.g., distributor) submitted on behalf of Medtronic. NOTE: This activity may be supported by non-Medtronic employees (e.g., license holders and distributors) who provide information to Medtronic.
4.		When new information is obtained, determine if further complaint evaluation is required per 027-WI185, <i>Intake, Assessment, and Complaint Determination</i> . If new information is obtained that could affect the RD, reassess the event and

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Step	Role	Action
		reportability decision if required per applicable requirements and work instructions. Examples of information that could impact the reporting decision include, but are not limited to: – Additional details regarding the event – Patient specific information, e.g. treatment received – Patient outcome – Device specific information including use issues – Device analysis results – Supplier analysis results – Updated risk management file, Health Risk Assessment (HRA), and/or Field Corrective Action (FCA) – Product information including availability and/or regulatory feedback NOTE: ▪ If, after becoming aware of a potentially reportable event, there is uncertainty about whether it is reportable, submit a report within the timeframe required for that type of event per the applicable work instruction. ▪ For changes that may influence a reportability decision, notify all regions that must assess the complaint. – Region notifications may require manual notification to ensure that re-assessment is completed when complaint details are changed. See 027-WI185 for reassessment information.

2. Regulatory Reporting

Step	Role	Action
1.	Formally Designated Complaint Handling Unit	If it is determined that an event is reportable, complete regulatory reports for the applicable regulatory agencies (and/or countries) based on information within the complaint record. Refer to Work Instructions noted in Section 1, as appropriate. ▪ Submit all regulatory reports on or prior to the due date as defined by that country's requirements. ▪ Include all required information known at the time of submission, including relevant information obtained from

Step	Role	Action
		customer communications and product analysis, if available. Retain a copy of submitted report(s) in the complaint record. If an acknowledgement of submission is received, it should be retained in the complaint record.
2.		If a report (e.g., initial, follow-up/supplemental, or final) is submitted late (i.e., after the due date) conduct an evaluation to determine the reason for the late submittal per D00528427, <i>Regulatory Report Timeliness Evaluation</i> or local processes.
3.		When new information is obtained after regulatory report(s) have been filed, determine if the new information should be included in a follow-up/supplemental, or final report, in accordance with the requirements for the applicable country(ies). If the information is to be included, submit and retain regulatory reports per the steps above.
4.		When the reportability of an event is changed as a result of a change in the risk assessment of an event (e.g., the event severity has increased, HRA or FCA released, etc.): ▪ All complaint files created after the effective date of the change in risk will be assessed per the new or the revised reportability criteria. ▪ All complaint files open at the time the change is implemented will be re-assessed per the new or revised risk assessment. The aware date of the updated reporting decision is the effective date of the new or revised risk assessment. ▪ After the effective date of the change, if a complaint file is re-opened due to new information that requires reassessment of reportability, reassess per the reportability criteria in effect at the time of reassessment.
5.		If an associated HRA or equivalent is completed, evaluate the impact on reporting decisions in accordance with D00995278, <i>Medical Device Reporting Determination Related to Risk Assessments</i>.

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3. Regulatory Inquiry

Step	Role	Action
1.	Formally Designated Complaint Handling Unit	Based on submitted reports, the regulatory authorities and/or notified bodies may follow up for further information or clarifications. These follow-ups may be referred to as a Regulatory Inquiry (RI) or a Request for Additional Information (RAI). Process RIs/RAIs per D00224727, <i>Customer Quality Regulatory Inquiries</i> and/or local processes.

References

Number	Title
027-P043	Product Complaint Handling
027-P428	Submitting Potential Complaints
027-WI185	Intake, Assessment, and Complaint Determination
027-WI188	Customer Communication
054-WI198	Medical Device Reporting Decision and Regulatory Reporting - United States
D00788854	Combination Products/Drug Product and Tissue-based Product Complaint Process
054-WI200	Reporting Decision and Regulatory Reporting - Canada
054-WI201	Medical Device Reporting Decision and Regulatory Reporting - European Economic Area (EEA, TR, CH and UK)
D00780672	Reporting Decision and Regulatory Reporting - Russia, Saudi Arabia, South Africa, Kazakhstan, Serbia, and Egypt
D00780675	Medical Device Reporting Decision and Regulatory Reporting - Israel
D00780698	Medical Device Reporting Decision and Regulatory Reporting - Japan
D00780692	Medical Device Reporting Decision and Regulatory Reporting - Southeast Asia
D00780695	Medical Device Reporting Decision and Regulatory Reporting - New Zealand
D01337242	Medical Device Reporting Decision and Regulatory Reporting – Australia
D00780699	Medical Device Reporting Decision and Regulatory Reporting - South Korea

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Number	Title
054-WI204	Medical Device Reporting Decision and Regulatory Reporting - Mainland China
D00780691	Medical Device Reporting Decision and Regulatory Reporting - Taiwan
D00780667	Medical Device Reporting Decision and Regulatory Reporting - Costa Rica, El Salvador and Mexico
D00780668	Medical Device Reporting Decision and Regulatory Reporting - Brazil
D00780666	Medical Device Reporting Decision and Regulatory Reporting - Colombia and Ecuador
D00780664	Medical Device Reporting Decision and Regulatory Reporting - Argentina, Peru & Uruguay
D00780694	Medical Device Reporting Decision and Regulatory Reporting - Hong Kong
D00780688	Medical Device Reporting Decision and Regulatory Reporting - India
D00528427	Regulatory Report Timeliness Evaluation
D00224727	Customer Quality Regulatory Inquiries
D00995278	Medical Device Reporting Determination Related to Risk Assessments

Quality Records

Quality Record	Required Approvals
Complaint Record	None

Appendix A – Aware Date vs. Notify Date Details

As noted in the Definitions Section above, Aware Date and Notify Date do not have the same definition. The Aware Date and Notify may be the same date or may differ.

The difference between the two terms, is that Aware Date represents the date that any Medtronic Employee received sufficient information that necessitates a regulatory report.

In contrast, the Notify Date represents the initial date that any Medtronic Employee receives information that meets the definition of a complaint. Unless the initial Notify Date was erroneous, the Notify Date for the event will not change.

In some situations, the initial information will meet the requirements for regulatory reporting, in which case the Notify Date and the Aware Date will be the same date. However, if the initial information provided does not necessitate regulatory reporting, and new information is later received which does require regulatory reporting, the Aware Date would be updated to align with the date in which the new information (the information that requires a regulatory report) was received.

NOTE: Aware Date may be defined differently per local Country/Region requirements. Please reference the applicable local regulatory definitions for countries/regions per applicable work instructions in Section 1.1; and this may also be represented in the file, with different aware dates for different reporting decisions made based on different countries having different reportability criteria.

Examples:

Scenario:	Dates Used:
Cardiovascular Example:	
Medtronic Employee notified on 01JAN2024 that a Medtronic surgical heart valve was “leaking” and it may need to be replaced in the future. This was reported to Complaint Handling on 03JAN2024. The Notify Date for the event is 01JAN2024, and the initial Reporting Decision (RD) was completed as “not reportable” with an Aware Date of 01JAN2024 because this original information does not meet reporting criteria. Then, on 21JAN2024, a Medtronic Employee was present at procedure to replace the leaking Medtronic valve, and the Medtronic employee reported this information to Complaint Handling on 22JAN2024. The complaint unit re-assessed the reporting decision based on this new information, and the new information resulted in the event now meeting reporting criteria. Therefore, the updated Aware Date for the RD was 21JAN2024, the date the first Medtronic Employee became aware of the information which requires a regulatory report.	Notified Date = 01JAN2024. This was the date the complaint information was initially provided to Medtronic. Initial Aware Date = 01JAN2024 for the initial RD. The original information did not meet requirements for reporting, so the RD was completed as “not reportable”. Updated Aware Date = 21JAN2024 for the re-assessed RD, which changed the decision from “not reportable” to “reportable”. Even though the Complaint Unit did not get this information until 22JAN2024, the first Medtronic Employee received information about the reportable event on 21JAN2024.

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Scenario:

Dates Used:

Medical Surgical Example:

Medtronic received a complaint on 01JUL2024. It was reported that, "this HT70 ventilator did not power on". This is not a reportable complaint. Service was completed on 06JUL2024 to replace the control board, which is still not a reportable complaint. Analysis of the returned control board was completed on 14AUG2024 confirming a C92 failure (not reportable). Then, on 19AUG2024, an HRA is released making the C92 failure reportable.

Notified date is 01JUL2024 (as this was the date Medtronic was first ever notified about the complaint).

Initial Aware Date: 01JUL2024, information available on this date did not require reporting.

Updated Aware Date= 19AUG2024 (approval date of the HRA), which was new information requiring a change to the RD from *not* reportable to reportable.

Medical Surgical Example:

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Scenario:

MDT received a complaint on 16JUL2023 "this 980 ventilator would not power on. The ventilator was not in use on a patient". This allegation is not reportable. The product analysis identified a C78 failure on the returned PCBA, which is reportable. The PA task was completed on 09NOV2023.

Dates Used:

Notified Date = 16JUL2023 (as this is the date that Medtronic was first ever notified about the information).

Aware Date = 09NOV2023 (as this was the PA task was completed, and when Medtronic became aware that there was a reportable condition).